

PETITIONER Maria-Alejandra O'Shaughnessy-Whitfield	CASE NUMBER SCD000012760
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TO BE COMPLETED BY THE PROSECUTING AGENCY:

- ☐ The People agree that petitioner is eligible for the requested relief. No hearing is requested.
- ☐ The People allege petitioner is not eligible for the requested relief pursuant to Pen. Code § 851.90 because:
- ☐ Petitioner has not successfully completed a drug diversion program or deferred entry of judgment program.
- ☐ Other: _____.
- ☐ The People oppose the requested relief. The People request this matter be calendared for a hearing and that petitioner notice all law enforcement agencies involved in the arrest.

Date: _____ by _____
District Attorney / City Attorney / Attorney General

TO BE COMPLETED BY THE COURT:

NOTICE OF HEARING: Petition will be heard on _____ at _____ in Dept. _____.

Clerk of the Superior Court

Date: _____ by _____, Deputy

Distribution by: _____ on _____ to ☐ Prosecutor ☐ Petitioner

Attachment to CRM-307

Superior Court of California, County of San Diego; CENTRAL Division

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield; case SCD000012760

This attachment supplies full facts wherever the petition says See attachment. Include it with every petition copy.

Arrest entries beyond the three printed rows continue here.

Full legal name: Maria-Alejandra O'Shaughnessy-Whitfield. Address: 1188 Upper Notch Crossing Road, Apartment 14B; San Diego, CA 92101-2214. Telephone: 619-555-0142. Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org.

Prosecuting agency number: DA000012760. Dismissal date: 04/12/2024.

Arrest 1: prosecuting attorney San Diego County District Attorney; arresting agency San Diego Police Department Narcotics Division; report PD00012760-1; booking BK00012760-1; arrest date 01/12/2022; charges Count 1: Health and Safety Code 11350(a).

Arrest 2: prosecuting attorney San Diego County District Attorney; arresting agency San Diego Police Department Narcotics Division; report PD00012760-2; booking BK00012760-2; arrest date 01/12/2022; charges Count 2: Health and Safety Code 11350(a).

Arrest 3: prosecuting attorney San Diego County District Attorney; arresting agency San Diego Police Department Narcotics Division; report PD00012760-3; booking BK00012760-3; arrest date 01/12/2022; charges Count 3: Health and Safety Code 11350(a).

Arrest 4: prosecuting attorney San Diego County District Attorney; arresting agency San Diego Police Department Narcotics Division; report PD00012760-4; booking BK00012760-4; arrest date 01/12/2022; charges Count 4: Health and Safety Code 11350(a).

Arrest 5: prosecuting attorney San Diego County District Attorney; arresting agency San Diego Police Department Narcotics Division; report PD00012760-5; booking BK00012760-5; arrest date 01/12/2022; charges Count 5: Health and Safety Code 11350(a).

The petitioner verifies these facts by signing the petition. This attachment makes no prosecutor response or court decision.

Filing, Notice and Court-Order Follow-up

Superior Court of California, County of San Diego; CENTRAL Division

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield; case SCD000012760

1. Supported scope. This packet is limited to the existing supported San Diego Penal Code 851.90 successful-completion cohort and confirmed dismissal facts. Verify the court record and retain actual proof of completion and dismissal. Other counties, programs, disputed completion, prosecutor opposition or a contested hearing require appropriate assistance. The court decides relief.
2. Review and sign. Check every CRM-307 fact and attached arrest entry. Select the court division that handled the case. Sign and date the petition only when its statements are true; an attorney completes attorney execution only if applicable. The optional appearance waiver is a separate choice, not a requirement or an automatic selection. Do not fill prosecutor responses, prosecutor signatures, court hearing decisions, clerk dates or distribution controls.
3. File and give notice. File the petition and its attachments with the San Diego Superior Court that handled the case. Serve a copy on the prosecuting attorney as required and retain actual proof of service. Confirm the proper prosecutor and service address/method with the receiving court or prosecutor. Notice to all parties remains required; prosecutor service alone does not establish that every applicable notice obligation is complete. Obtain any required proof-of-service form or assistance; this packet does not certify service that has not occurred.
- Fees. The San Diego Public Defender states there is no fee for this sealing petition. Confirm any separate copy or service costs. If the receiving court requests a different fee or submission, obtain clarification or assistance; no fee-waiver form is required by this packet.
4. Hearing branch. Do not assume a hearing is unnecessary. Review the prosecutor response and any court notice. If a hearing is set, comply with the actual hearing date and instructions and attend unless excused. If the prosecutor opposes or requests a hearing, obtain assistance and follow the requirement to notify the law-enforcement agencies involved in the arrest, as applicable. Keep actual notices and service records. Blank court notice fields do not mean no hearing is required.
5. Specific court requests control. If the receiving court requests a proposed order or another submission, obtain supported completion or assistance for that specific request before proceeding. This packet does not fabricate an applicant proposed order and does not override a court request.
6. Wait for the decision. Successful completion, dismissal, filing, or lack of prosecutor opposition does not establish that records are sealed. The judge decides the petition. Retain a denial or pending notice as such. After a grant, obtain and keep the actual court-issued order copy and its genuine date and case identifiers. That future order is not required to render this initial petition and is not included as a synthetic court document.
7. Follow up after grant. The court provides the order to the defendant and prosecuting attorney. Under Penal Code 851.92, within 30 days the court forwards order copies to the arresting and participating law-enforcement agencies and the master local criminal-history agency. The court sends the Department of Justice a disposition report identifying the relief statute and date, not the sealing order for criminal-history processing. If expected updates are missing, contact the court and relevant agency with the actual order and retain responses.

Filing, Notice and Court-Order Follow-up

8. Limits. Sealing does not destroy records or remove authorized criminal-justice access. Penal Code 851.90 retains a disclosure requirement for a peace-officer employment application. Obtain advice for other disclosure questions. No automatic deletion from every private database is promised.

Before filing: replace all synthetic sample facts; obtain actual completion and dismissal records; verify prosecutor service and all-party notice; address any specific court request; sign and date correctly; retain copies. After decision: retain the actual decision and, if granted, follow up on distribution and record updates.

Sources: San Diego Public Defender, Dismissal for PC1000 Participants; exact SDSC CRM-307 (new 5/19); California Penal Code 851.90 and 851.92.

California Diversion Arrest-Sealing Guidance

Superior Court of California, County of San Diego; CENTRAL Division

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield; case SCD000012760

Stage 1 - statewide process guidance. This explanation does not select or generate a local petition outside the supported San Diego scope. Ask the county superior court clerk or self-help center which local form and procedure apply to the court that handled your case. There is no statewide Judicial Council form for this route.

Under the adopted Penal Code 851.90 route, a person who successfully completed superior-court drug diversion under 1000.5 or deferred entry of judgment under 1000 or 1000.8 may seek arrest-record sealing. Obtain proof of the actual program and completion from the court or provider. The judge may order sealing on written or oral motion of any party or on the court's own motion, with notice to all parties. Successful completion does not itself establish that an order has been issued.

This is arrest sealing, not a dismissal, set-aside or expungement. This packet does not determine eligibility under Penal Code 851.87, 1000.4 or 1001.9. Obtain assistance for those branches, disputed completion, prosecutor opposition or a contested hearing. A routine hearing is not itself a refusal to prepare an initial petition.

After an order, 851.92 governs distribution and record updates: the court provides copies to the person and prosecutor, forwards copies to arresting and participating law-enforcement and master local criminal-history agencies within 30 days, and sends DOJ a disposition report identifying the relief statute/date. Retain the actual order and follow up on missing updates. Do not assume an automatic process has happened without the court record.

Stage 2 - county filing is separately limited. The enclosed CRM307 is only for the existing supported San Diego 851.90 successful-completion and dismissal facts. It cannot be reused for another county. Other county-specific petition coverage remains restricted; request that county's instructions or assistance. A specific court request for an additional submission or proposed order controls and must be addressed without fabricating a court document.